SUBCONTRACT AGREEMENT — KINGS CANYON MEDICAL OFFICE BUILDING

This Subcontract Agreement (the "Subcontract") is entered into as of February 2, 2026, between **Calder & Webb Builders**, a California corporation, California Contractor's State License Board License No. 1048832 (Class B), with its principal office at 2715 West Shaw Avenue, Suite 300, Fresno, California 93711 ("Contractor"), and **Brightline Glazing Co.**, a California corporation, California Contractor's State License Board License No. 917406 (Class C-17), with its principal office at 4480 North Blythe Avenue, Fresno, California 93722 ("Subcontractor").

Contractor has entered into a prime contract dated November 14, 2025 (the "Prime Contract") with **Fresno Community Health Partners** ("Owner") for the construction of the **Kings Canyon Medical Office Building**, a three-story medical office building at 6120 East Kings Canyon Road, Fresno, California 93727 (the "Project").

Contractor wishes to engage Subcontractor to perform a portion of the work under the Prime Contract. Subcontractor has examined the Subcontract Documents and the Project site and is willing to perform that work on the terms stated below. The parties therefore agree as follows.

ARTICLE 1 — DEFINITIONS

1.1 "Subcontract Work" means all labor, materials, equipment, engineering, supervision, and services required to complete the glazing scope described in Article 3, together with all work reasonably inferable from the Subcontract Documents as necessary to produce the intended result.

1.2 "Subcontract Documents" means this Subcontract, its Exhibit, the Prime Contract as it relates to the Subcontract Work, the drawings and specifications listed in Article 2, and all addenda and modifications issued before or after execution.

1.3 "Architect" means Sierra Line Architecture, Inc., or any successor design professional designated by Owner.

1.4 "Substantial Completion" has the meaning given in the Prime Contract. "Final Completion of the Subcontract Work" means the date on which Subcontractor has completed all Subcontract Work, including punch list items, and has delivered all closeout submittals, warranties, and final lien releases required by this Subcontract, as confirmed in writing by Contractor.

1.5 "Day" means a calendar day unless otherwise stated.

ARTICLE 2 — SUBCONTRACT DOCUMENTS

2.1 The drawings are the Architect's Construction Document set dated October 20, 2025, sheets A0.01 through A9.14, S1.01 through S5.08, and the associated details, as revised by Addenda 1 through 3.

2.2 The specifications are the Project Manual dated October 20, 2025, including without limitation Section 08 41 13 (Aluminum-Framed Entrances and Storefronts), Section 08 44 13 (Glazed Aluminum Curtain Walls), Section 08 80 00 (Glazing), Section 08 87 13 (Decorative Glazing Films), Section 07 92 00 (Joint Sealants) as it relates to glazing perimeters, and Division 01 General Requirements.

2.3 Subcontractor is bound to Contractor by the terms of the Prime Contract to the same extent that Contractor is bound to Owner, but only as to the Subcontract Work. Where this Subcontract and the Prime Contract conflict, the

provision giving Contractor the greater right or imposing on Subcontractor the higher standard of performance controls, unless this Subcontract expressly states otherwise.

2.4 Subcontractor acknowledges that it has had a full opportunity to review the Prime Contract and the other Subcontract Documents before signing.

ARTICLE 3 — SCOPE OF SUBCONTRACT WORK

3.1 Subcontractor shall furnish and install the complete glazing scope for the Project, including:

(a) the glazed aluminum curtain wall system on the east and south elevations, including delegated engineering, anchors, embeds layout, stack joints, and integration with adjacent air and water barriers;

(b) aluminum-framed storefronts and entrances at the ground-floor lobby, pharmacy, and clinic suites, including entrance door hardware specified for those openings;

(c) interior glazing, including borrowed lites, relites, sidelites, and door vision panels shown on the drawings;

(d) decorative and privacy glazing films and ceramic frit as specified;

(e) perimeter sealants, sill flashings, and transition membranes at all glazing openings within its scope; and

(f) field water testing of the curtain wall and storefront systems as required by the specifications.

3.2 Subcontractor shall prepare and submit shop drawings, product data, samples, structural calculations stamped by an engineer licensed in California, and mock-ups as required by the specifications, no later than thirty (30) days after the date of this Subcontract.

3.3 The Subcontract Work excludes rough openings, structural steel framing, hollow metal frames, and wood doors, except where the drawings expressly assign glazing of those items to Subcontractor.

3.4 Subcontractor shall protect its installed work until Substantial Completion and shall clean all glass and framing surfaces before Contractor's final inspection.

ARTICLE 4 — SCHEDULE AND TIME

4.1 Subcontractor shall begin field work within five (5) days after written notice from Contractor and shall perform the Subcontract Work in the sequence and at the pace required by Contractor's project schedule, as updated from time to time.

4.2 Time is of the essence. Subcontractor shall provide sufficient labor, materials, and equipment to maintain the schedule and shall attend weekly coordination meetings.

4.3 If Subcontractor is delayed by causes beyond its control and without its fault, it may request an extension of time by written notice to Contractor within five (5) days after the delay begins. An extension of time is Subcontractor's sole remedy for delay, except to the extent Contractor recovers delay damages from Owner on account of Subcontractor's claim, in which case Contractor shall pass through Subcontractor's share.

4.4 If Subcontractor fails to maintain the schedule, Contractor may direct Subcontractor to add shifts or crews at no additional cost to Contractor until Subcontractor has recovered the lost time.

ARTICLE 5 — SUBCONTRACT SUM

5.1 Contractor shall pay Subcontractor for full performance of the Subcontract Work the sum of **Three Hundred Eighty-Four Thousand Dollars ($384,000.00)** (the "Subcontract Sum"), subject to additions and deductions by Change Order as provided in Article 6.

5.2 The Subcontract Sum includes all applicable sales and use taxes, permits within Subcontractor's trade, freight, hoisting not provided by Contractor, and engineering.

5.3 The Schedule of Values attached as the Exhibit allocates the Subcontract Sum among the parts of the Subcontract Work. Contractor will use it as the basis for evaluating progress payment applications.

ARTICLE 6 — CHANGES

6.1 Contractor may, without invalidating this Subcontract, order additions, deletions, or other changes to the Subcontract Work. Subcontractor shall proceed promptly with any change directed in writing by Contractor.

6.2 Subcontractor shall submit a written, itemized proposal for any change within seven (7) days after receiving Contractor's request. Adjustments to the Subcontract Sum will be made by written Change Order signed by both parties.

6.3 If the parties cannot agree on the amount of a change, Subcontractor shall proceed with the changed work on Contractor's written directive, and the adjustment will be determined under Article 14.

6.4 Subcontractor shall not be paid for extra work performed without a written Change Order or written directive from Contractor.

ARTICLE 7 — PROGRESS PAYMENTS AND PAYMENT TIMING

7.1 By the twentieth (20th) day of each month, Subcontractor shall submit to Contractor an application for payment covering the Subcontract Work performed through the end of that month, itemized against the Schedule of Values and accompanied by the lien waivers required by Article 9. Contractor will include the approved amount in its next application to Owner.

7.2 Contractor shall pay Subcontractor the amount approved for each progress payment, less retention under Article 8 and any amounts withheld under Article 10, within seven (7) days after Contractor receives payment from Owner on account of that portion of the Subcontract Work. The parties have agreed in writing, by signing this Subcontract, to this seven-day timing for progress payments.

7.3 Contractor's receipt of payment from Owner is a timing mechanism only and is not a condition precedent to Contractor's obligation to pay Subcontractor. The parties intend that Owner's payment fixes when Contractor's payment ordinarily falls due, not whether it falls due. Subcontractor does not assume the risk of Owner's nonpayment or insolvency.

7.4 If Owner does not pay Contractor for Subcontract Work that has been properly performed and properly invoiced, for any reason other than the fault of Subcontractor, Contractor remains liable to pay Subcontractor for that work within a reasonable time after Subcontractor's application, even if Owner never pays.

7.5 Contractor will make progress payments only for Subcontract Work actually incorporated into the Project. Contractor will not pay for materials or equipment that are stored on or off the site but not yet installed, and Subcontractor shall not include stored materials in any application for payment.

7.6 Final payment, consisting of the unpaid balance of the Subcontract Sum other than retention, is due on the same basis as progress payments once Subcontractor has achieved Final Completion of the Subcontract Work and delivered all closeout documents.

7.7 Progress payments are not acceptance of defective or nonconforming work.

ARTICLE 8 — RETENTION

8.1 Contractor shall withhold retention of five percent (5%) from each progress payment made to Subcontractor.

8.2 Contractor shall release the retention to Subcontractor within ten (10) days after both of the following have occurred: (a) Final Completion of the Subcontract Work; and (b) Contractor's receipt of retention from Owner.

8.3 Subcontractor shall submit an application for release of retention with the conditional final lien waiver required by Article 9 and all outstanding closeout items.

ARTICLE 9 — LIEN RELEASES AND WAIVERS

9.1 With each application for a progress payment, Subcontractor shall deliver to Contractor a conditional waiver and release on progress payment covering the amount requested. Contractor is not required to process any application that lacks this conditional waiver.

9.2 After Subcontractor receives each progress payment, and as a requirement for processing its next application, Subcontractor shall deliver to Contractor an unconditional waiver and release on progress payment covering the amount received.

9.3 With its application for final payment and for release of retention, Subcontractor shall deliver a conditional waiver and release on final payment. Within five (5) days after receipt of final payment, Subcontractor shall deliver an unconditional waiver and release on final payment.

9.4 Every waiver and release delivered under this Subcontract must be on the statutory form prescribed by California Civil Code sections 8132, 8134, 8136, and 8138, as applicable. Contractor will not accept a waiver that departs from the statutory form.

9.5 Subcontractor shall obtain and deliver to Contractor the same conditional and unconditional statutory waivers from each of its lower-tier subcontractors and material suppliers whose work or materials are included in the application, at the same times as Subcontractor's own waivers are due.

9.6 Subcontractor shall promptly pay its lower-tier subcontractors and suppliers and shall keep the Project free of mechanics liens, stop payment notices, and bond claims arising from the Subcontract Work. If any such claim is recorded or served, Subcontractor shall have it released or bonded around within ten (10) days after written demand.

ARTICLE 10 — WITHHOLDING, BACKCHARGES, AND SETOFF

10.1 Contractor may withhold from any payment due to Subcontractor an amount reasonably sufficient to cover the cost of correcting defective or nonconforming Subcontract Work that Subcontractor has not corrected. Contractor shall release the withheld amount once the work has been corrected and accepted.

10.2 Contractor may set off against any amount due to Subcontractor under this Subcontract the amount of any backcharge properly assessed against Subcontractor, including costs of cleanup, protection, damage repair, schedule recovery, and work performed by Contractor or others because of Subcontractor's failure to perform.

10.3 Before assessing a backcharge, Contractor shall give Subcontractor written notice describing the deficiency and, except in an emergency, at least forty-eight (48) hours to cure. Each backcharge must be supported by reasonable documentation of the cost incurred.

10.4 Contractor may also withhold amounts needed to protect against unpaid claims of Subcontractor's lower-tier subcontractors and suppliers, to the extent permitted by California law.

10.5 Any withholding under this Article must be stated in writing to Subcontractor, identifying the amount withheld and the reason, at the time the related payment is made.

ARTICLE 11 — INSURANCE AND INDEMNITY

11.1 Before beginning work, Subcontractor shall furnish certificates of insurance showing: commercial general liability coverage of not less than $2,000,000 per occurrence and $4,000,000 aggregate, including completed operations for at least ten (10) years after Final Completion of the Subcontract Work; automobile liability of $1,000,000 combined single limit; workers' compensation as required by California law with employer's liability of $1,000,000; and umbrella coverage of $5,000,000.

11.2 Contractor, Owner, and Architect shall be additional insureds on the general liability, automobile, and umbrella policies on a primary and noncontributory basis. Each policy shall include a waiver of subrogation in favor of the additional insureds.

11.3 To the fullest extent permitted by law, Subcontractor shall defend, indemnify, and hold harmless Contractor, Owner, and their officers and employees from claims, damages, losses, and expenses, including reasonable attorneys' fees, arising out of or resulting from the performance of the Subcontract Work, to the extent caused by the negligence, willful misconduct, or breach of this Subcontract by Subcontractor or anyone for whom it is responsible. This obligation does not extend to claims arising from the active negligence or willful misconduct of an indemnified party, or to any extent prohibited by California Civil Code section 2782.

ARTICLE 12 — WARRANTY

12.1 Subcontractor warrants that all materials and equipment will be new and of the specified quality, and that the Subcontract Work will be free from defects and conform to the Subcontract Documents.

12.2 Subcontractor shall correct, at its own cost, any Subcontract Work found defective within one (1) year after Substantial Completion of the Project, or within any longer period required by the specifications, including any longer manufacturer warranty on insulating glass units, finishes, and curtain wall water performance.

12.3 Subcontractor shall deliver all manufacturer warranties, properly executed in Owner's name, as part of its closeout submittals.

ARTICLE 13 — SAFETY, SITE CONDITIONS, AND COMPLIANCE

13.1 Subcontractor shall comply with Contractor's site safety program, Cal/OSHA regulations, and all laws applicable to the Subcontract Work. Subcontractor shall designate a competent person on site at all times while its crews are working.

13.2 Subcontractor shall submit a site-specific fall protection plan and a rigging and hoisting plan for curtain wall installation before beginning field work.

13.3 Because the Project is a medical facility to be occupied in phases, Subcontractor shall follow Contractor's dust control, noise, and infection control requirements in any area designated by Contractor.

13.4 Subcontractor shall pay prevailing wages if and to the extent required by the Prime Contract or applicable law, and shall maintain certified payroll records available to Contractor on request.

13.5 Subcontractor shall maintain its license in good standing throughout performance of the Subcontract Work.

ARTICLE 14 — DEFAULT, TERMINATION, AND DISPUTES

14.1 If Subcontractor fails to perform any obligation under this Subcontract and does not begin to cure within three (3) days after written notice from Contractor, and diligently complete the cure, Contractor may supplement Subcontractor's forces, or terminate this Subcontract for default in whole or in part and complete the work by other means. Subcontractor is liable for the reasonable cost of completion in excess of the unpaid balance of the Subcontract Sum.

14.2 Contractor may terminate this Subcontract for convenience on seven (7) days' written notice. Subcontractor will be paid for Subcontract Work properly performed through the date of termination, reasonable demobilization costs, and reasonable overhead and profit on work performed, but not anticipated profit on unperformed work.

14.3 The parties shall first attempt to resolve any dispute through negotiation between their senior representatives. Disputes that also involve Owner shall be pursued under the dispute procedures of the Prime Contract, and Subcontractor shall be bound by the outcome to the extent it participated or was given an opportunity to participate.

14.4 Disputes not resolved under Section 14.3 shall be decided in the Superior Court of California, County of Fresno. Subcontractor shall continue performing the Subcontract Work pending resolution of any dispute.

ARTICLE 15 — GOVERNING LAW

15.1 This Subcontract is governed by the laws of the State of California, without regard to its conflict-of-law rules.

15.2 Nothing in this Subcontract waives any right Subcontractor has under California Business and Professions Code section 7108.5 or California Civil Code sections 8800 through 8822, except to the extent those statutes permit the parties to agree otherwise.

ARTICLE 16 — GENERAL PROVISIONS

16.1 Subcontractor may not assign this Subcontract or subcontract the whole of the Subcontract Work without Contractor's written consent. Contractor may assign this Subcontract to Owner if the Prime Contract is terminated.

16.2 Notices must be in writing and delivered by hand, by recognized overnight courier, or by email with confirmation of receipt, to the addresses in the preamble or as later designated in writing.

16.3 This Subcontract is the entire agreement between the parties on its subject matter and supersedes all prior proposals and negotiations. It may be amended only by a written instrument signed by both parties.

16.4 If any provision of this Subcontract is held unenforceable, the remaining provisions remain in effect, and the unenforceable provision shall be enforced to the maximum extent permitted by law.

16.5 A waiver by either party of any breach does not waive any later breach.

16.6 This Subcontract may be signed in counterparts and by electronic signature, each of which is an original.

IN WITNESS WHEREOF, the parties have executed this Subcontract as of the date first written above.

CALDER & WEBB BUILDERS By: _____ Name: Daniel R. Calder Title: President Date: _____

BRIGHTLINE GLAZING CO. By: _____ Name: Marisol T. Ochoa Title: Chief Executive Officer Date: _____

EXHIBIT — SCHEDULE OF VALUES

Item	Description	Value
---	---	---
1	Mobilization, submittals, shop drawings, and mock-up	$18,000.00
2	Delegated structural engineering and calculations	$14,000.00
3	Glazed aluminum curtain wall, east and south elevations (installed)	$168,000.00
4	Aluminum-framed storefronts and entrances (installed)	$72,000.00
5	Entrance door hardware at storefront openings	$16,000.00
6	Interior glazing: borrowed lites, relites, sidelites, vision panels	$38,000.00
7	Decorative and privacy glazing films and ceramic frit	$9,000.00
8	Perimeter sealants, sill flashings, and transition membranes	$22,000.00
9	Field water testing of curtain wall and storefront	$11,000.00
10	Punch list, cleaning, warranties, O&M manuals, and closeout	$16,000.00
	Subcontract Sum	**$384,000.00**